

26STCV12777 26STCV12777

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Case Number: 26STCV12777 Hearing Date: July 8, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

DALE R. HERBST,

Plaintiff,

v.

HILL BROTHERS CHEMICAL COMPANY, et al.,

Defendants.

Case No. 26STCV12777

Hearing Date: July 8, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFFS' MOTION FOR TRIAL PREFERENCE

I.

Background

On March 12, 2026, Plaintiff Dale R. Herbst filed his first amended complaint for personal injury alleging he developed malignant mesothelioma from occupational exposure to asbestos and asbestos-containing products.

On June 12, 2026, Mr. Herbst filed this motion for trial preference under Code of Civil Procedure section 36, subdivisions (a) and (d). Mr. Herbst argues that he is over the age of 70 and suffers from a terminal disease that places substantial medical doubt upon his survival beyond August 2026. Mr. Herbst requests a trial be set 90 days from the date of the hearing on this matter.

On June 24, 2026, Defendants Calolympic Glove & Safety Co., Inc. & 3M Company filed oppositions.

Neither opposition is substantive in nature. Calolympic argues that the court should deny, or in the alternative, continue this hearing for 60 to 90 days so that necessary depositions and discovery can be completed and potential discovery or dispositive motions be filed, because it only recently responded to the FAC with a Demurrer and Motion to Strike. 3M argues in opposition that Mr. Herbst has not shown good cause to set trial within 90 days and such an accelerated schedule would disproportionately prejudice Defendants. 3M contends that preference may be granted and trial be set 120 days from the date of this hearing if Mr. Herbst stipulates to certain summary judgment and/or summary adjudication considerations.

On June 30, 2026, Mr. Herbst filed his reply. Mr. Herbst maintains that he satisfied his initial burden on this motion and provided clear and convincing medical documentation supporting setting trial within 90 days from this hearing. He further argues that the status of discovery or due process concerns do not give rise to denial. Mr. Herbst also agrees to a 45-day notice period for dispositive motions, but notes that agreement with the Defendants' proposed terms is not a precondition to granting preference.

Mr. Herbst presented sufficient evidence to show that trial preference is necessary to prevent prejudicing his interest in the litigation. However, Mr. Herbst did not present sufficient evidence to support setting trial within 90 days rather than the statutorily identified 120 days. Therefore, Mr. Herbst's motion for trial preference is granted. Trial is set for Monday, November 2, 2026. The Final Status conference is set for Monday, October 19, 2026. A status conference for the proposed trial setting order is set for Friday, July 24, 2026. The court denies Calolympic's request to continue the hearing.

II.

Discussion

A.

Legal Standards

A party who is over 70 years old may petition the court for a preference for trial date, which the court shall grant if it makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) An affidavit submitted in support of a motion for preference under this subdivision may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. (Id., § 36.5.)

In addition, the court may grant a motion for trial preference accompanied by clear and convincing medical documentation concluding that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months and satisfying the court that the interests of justice will be served by granting the preference.¿ (Code Civ. Proc. § 36, subd. (d).)

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record."

(Id., § 36, subd. (f).)

"Any continuance shall be for no more than 15 days and no more than one

continuance for physical disability may be granted to any party.” (Ibid.)

B.

Analysis

Mr. Herbst is seventy-four years old and was diagnosed with advanced pleural mesothelioma in March 2026. (Mot., at p. 4; Horowitz Decl., Exh. 1, ¶¶ 5-10.) On February 11, 2026, Mr. Herbst was admitted to the Emergency Department at Lake Havasu Regional Medical Center due to shortness of breath, during which time he was diagnosed with “pleural effusion, pneumonia of unspecified organism, and shortness of breath.” (Id., ¶ 5.) On February 12, 2026, Mr. Herbst underwent a CT angiogram of his chest that revealed a “6.4 cm right thoracic mass concerning for malignancy, a moderate right pleural effusion with atelectasis, and bilateral calcified pleural plaques likely secondary to prior asbestos exposure.” (Id., ¶ 6.) Mr. Herbst also had 900 ccs of cloudy amber fluid removed from his chest. (Id.) A non-contrast CT of Mr. Herbst’s chest on March 6, 2026, revealed “a lobulated, pleural-based mass along the right anterior pericardial space measuring 64 x 63 x 88 mm with adjacent mass effect; a moderate right pleural effusion with atelectasis; and bilateral pleural calcifications, larger on the right, reflective of asbestos-related pleural disease.” (Id., ¶ 7.)

On March 16, 2026, Mr. Herbst was admitted to the emergency again for shortness of breath, and a chest x-ray revealed that “multiple right-sided pulmonary masses measuring up to 9.4 cm, which were noted to be larger than on the February 12, 2026 study.” (Id., ¶ 9.) The right pleural biopsy revealed sarcomatoid mesothelioma. (Id., ¶ 10.) On March 20, 2026, Mr. Herbst presented with decreased breath sounds in the middle and lower portions of his right lung, and was assessed to have “malignant pleural mesothelioma, WT1 positive (ICD-10 C45.0); recurrent malignant right pleural effusion (J91.0); dyspnea secondary to pleural effusion; and asbestos exposure with calcified pleural plaques (Z77.090).” (Id., ¶ 11.) On April 2, 2026, Mr. Herbst visited his oncologist who diagnosed him with “clinical stage III, cT4 N0 M0 biopsy-proven sarcomatoid mesothelioma” and recommended treatment that “is for disease control and is not curative.” (Id., ¶ 12.)

Unfortunately, Mr. Herbst’s “symptoms will continue to progress as his disease worsens, eventually

resulting in his death.” (Id., ¶ 13.) Dr. Zgoda also states that “[s]arcomatoid mesothelioma is widely recognized in the medical literature and in clinical practice as the most aggressive histologic subtype of pleural mesothelioma, with the shortest median survival of the principal histologic subtypes,” and in his opinion, “to a reasonable degree of medical certainty there is substantial doubt that Mr. Herbst will survive beyond six months from the date of [his] declaration.” (Id., ¶¶ 14-15.)

As noted, only Calolympic and 3M oppose Plaintiffs’ motion. In its opposition, Calolympic argues that it only recently responded to the FAC by filing a Demurrer with a Motion to Strike and:

“Given the nature of discovery in this case to date and discovery expected to be needed, it would be prudent for this Court to deny Plaintiff s Motion for Trial Preference, or in the alternative, continue the hearing on this Motion for 60-90 days so that necessary depositions and discovery can be completed, before an unnecessarily hasty trial date is assigned and forced on Defendant and the other named defendants without an opportunity to discover their involvement herein.”

(Cal. Opp., at p. 3.) While Calolympic concedes that a Motion for Trial Preference brought under Code of Civil Procedure section 36 is “mandatory” if a Plaintiff is over 70 years old and with health concerns, it argues that the court should “utilize its inherent authority” and continue this hearing by 60 to 90 days to allow for the necessary discovery, depositions, and trial preparation to be conducted. (Id., at pgs. 3-4.)

3M argues that “Plaintiff’s outdated medical evidence does not establish the good cause necessary for a 90 day setting,” and a grant is outweighed by the prejudice Defendants would suffer “[g]iven the scope of the alleged exposure, the multiple sources of claimed exposures, the complexities inherent in this litigation, and the substantial discovery that remains to be completed.” (3M Opp., at pgs. 4-5.) 3M also argues that the court should consider due process concerns, especially as to 3M’s right to move for summary judgment, when assigned a trial date and should not set for fewer than 120 days. (Id., at pgs. 5-6.)

In reply, Mr. Herbst

maintains that he provided sufficient evidence to support setting trial within 90 days. First, Mr. Herbst argues that “Dr. Zgoda’s declaration opined to a reasonable degree of medical certainty that there is substantial doubt Mr. Herbst will survive beyond six months from June 9, 2026 due to sarcomatoid mesothelioma.” (Reply at pg. 1.) Thus, “[e]xtending the trial date beyond 90 days of the hearing on this Motion not only creates the risk that Mr. Herbst will die prior to his trial but also the risk that he may have further impairment that impacts his ability to effectively participate at trial.” (Reply at pg. 2.) Second, Mr. Herbst argues that “3M advances a number of cherry-picked lawyer arguments opining as to Mr. Herbst’s medical condition” without submitting medical expert opinion to support its assertions. (Id. [emphasis included].) Mr. Herbst also takes issue with 3M’s language when describing Mr. Herbst’s condition in its opposition and notes that he had supplemented production proving his records are not “stale” because they include recent immunotherapy treatment records. (Reply at pgs. 2-3 [“What is more, the argument that Mr. Herbst is attempting to live an active, fulfilling life during the little time he has left is as offensive as it is irrelevant and specious.”].) Lastly, Mr. Herbst argues that the status of discovery and due process concerns do not bar this motion, and he is amenable to an order extending all discovery deadlines and entering into a stipulation with Defendants regarding modifying service and hearing of dispositive motions. (Reply at pgs. 3-5.)

The evidence before the court is sufficient to establish that Mr. Herbst is entitled to a trial preference under Code of Civil Procedure section 36, subdivision (a). There is no dispute that Mr. Herbst’s age is above the threshold required under the statute, or that he has a substantial interest in the litigation. The evidence shows that Mr. Herbst’s health is such that he is experiencing worsening shortness of breath, continuous hospitalizations, and suffering from an aggressive, incurable cancer.

However, Mr. Herbst’s evidence is insufficient to show that there is substantial doubt as to his survival beyond six months. Dr. Zgoda’s declaration lacks foundation as to his opinion that Mr. Herbst’s illness is such that there is a substantial medical doubt as to his survival beyond six months. The last time Dr. Zgoda interacted with Mr. Herbst was March 20, 2026, and the most recent document he relied upon to form the basis of his opinion was from 3 months ago in April 2026. Dr. Zgoda’s

notes from Mr. Herbst's March 20, 2026 visit states that Mr. Herbst "reports overall clinical stability with improved dyspnea" and "denies chest pain, weight loss, fevers, or new systemic symptoms." (Zgoda Decl., Exh. B, at p. 1.) The report also stated the Mr. Herbst is "alert and oriented to person, place, and time. Mental status is at baseline." (Id., at p. 10.) Dr. Shrestha's report from April 2, 2026 states that Mr. Herbst "maintains an active lifestyle." (Zgoda Decl., Exh. C, at p. 2.) There is limited information within the medical records attached to the motion about the progression of Mr. Herbst's symptoms or the results of his immunotherapy treatments. The records at most show that Mr. Herbst's condition has not significantly worsened since his last visit due to sufficient palliative care.

However, while Mr. Herbst can currently participate in his case, it is reasonable to infer from the severity of his illness reflected in his medical records and Dr. Zgoda's declaration that his symptoms will only worsen in the future, impairing his ability to participate in litigation and trial. The Court finds that trial preference is necessary to prevent prejudice to Mr. Herbst's interest. Accordingly, Mr. Herbst's motion for trial preference is granted.

3M's opposition also requests that the court impose certain conditions as part of the trial setting order including, but not limited to, shortening the motion for summary judgment and/or adjudication notice period and setting motions for summary judgment and/or adjudication hearing up to one week before the trial date. 3M does not cite any authority for the proposition that the court can impose such conditions upon the parties as part of an order granting trial setting preference; the court is not authorized to shorten the notice period on motions for summary judgment. (Robinson v. Woods (2008) 168 Cal.App.4th 1258, 1267.) The court expects the parties to meet and confer regarding the appropriate conditions for a proposed trial setting order. In reply, Mr. Herbst indicates that he is willing to agree to certain stipulations, like a 45-day notice period for dispositive motions, and will meet and confer with Defendants regarding discovery issues. (Reply at pg. 5.) If there are disputes as to the appropriate conditions, the court will rule on these disputes at the status conference regarding the trial setting order.

III.

Conclusion

Mr.

Herbst's motion for trial preference is granted. The parties are to meet and confer regarding appropriate conditions for a trial setting order. The court sets trial for Monday, November 2, 2026, at 9:00 A.M. The Final Status conference is set for Monday, October 19, 2026 at 9:00 A.M. A status conference for the proposed trial setting order is set for Friday, July 24, 2026 at 9:00 A.M. Plaintiff is ordered to give notice.